

420 *The Trial of the Seven Bishops.*

other, 'tis all nothing but Discourses. Sometimes this Dispensing Power has been allow'd, as in *Richard* the Second's Time; and sometimes it has been denied, and the King did once wave it; Mr. Solicitor tells you the Reason, There was a *Lump of Money* in the Case: But I wonder indeed to hear it come from him.

Mr. Sol. Gen. My Lord, I never gave my Vote for Money, I assure you.

L. Ch. Just. But those Concessions which the King sometimes makes for the Good of the People, and sometimes for the Profit of the Prince himself, (but I would not be thought to distinguish between the Profit of the Prince and the Good of the People, for they are both one, and what is the Profit of the Prince is always for the Good of the People;) but, I say, those Concessions must not be made Law, for that is reserv'd in the King's Breast, to do what he pleases in it at any Time.

The Truth of it is, the Dispensing Power is out of Case, 'tis only a Word used in the Petition; but truly I will not take upon me to give my Opinion in the Question, to determine that now, for it is not before me: The only Question before me is, and so 'tis before you, Gentlemen, it being a Question of Fact, Whether here be a certain Proof of a Publication? And then the next Question is a Question of Law indeed, Whether, if there be a Publication prov'd, it be a Libel?

Gentlemen, upon the Point of a Publication, I have summ'd up all the Evidence to
you,